

25STCV24036 25STCV24036

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV24036 Hearing Date: August 28, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Graciela Avila

;

Plaintiff,

vs.

Pitney Bowes, INC.

, et al.,

Defendants.

Case No.:

25STCV24036

Hearing Date:

August 28, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Motion
to Compel Arbitration

(2) First
Rate Corporation's Joinder to Motion to COMpel Arbitration

(3) Janet
Mendoza's Joinder to Motion to Compel Arbitration

(4) Genoveva
Rendon's Joinder to Motion to COMpel ARbitration

MOVING PARTY: Defendant Pitney Bowes, Inc.

RESPONDING

PARTY: Plaintiff Graciela Avila

(1) Motion
to Compel Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

MOVING PARTY: Defendant First Rate Staffing
Corporation.

RESPONDING

PARTY: Plaintiff Graciela Avila

(2) Joinder
to Motion to Compel Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

MOVING PARTY: Defendant Janet Mendoza

RESPONDING

PARTY: Plaintiff Graciela Avila

(3) Joinder
to Motion to Compel Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

MOVING PARTY: Defendant Genoveva Rendon

RESPONDING

PARTY: Plaintiff Graciela Avila

(4) Joinder
to Motion to Compel Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY

OBJECTIONS

The court does
not rule on any of the objections to evidence filed in connection with the
motion or the joinders in the motion because they are not material to the
court's disposition of the motion or joinders in the motion.

REQUESTS FOR JUDICIAL NOTICE

The court denies the requests
for judicial notice filed in connection with the motion and joinders in the
motion because they are not material to the court's disposition of the motion
or joinders in the motion. Gbur v.
Cohen (1979) 93 Cal.App.3d

296, 301 (“[J]udicial notice . . . is always confined to those matters which are relevant to the issue at hand.”).)

DISCUSSION

Motion to Compel Arbitration

Defendant

Pitney Bowes, Inc. (“Defendant”) moves the court for an order compelling plaintiff Graciela Avila (“Plaintiff”) to submit her claims to binding arbitration.

“ “The party

seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement's enforcement.” ” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.)

To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.”

(Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citations.] A movant can bear this initial burden ‘by

attaching a copy of the arbitration agreement purportedly bearing the opposing party's

signature.” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute”

as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence.

(Ibid.; Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.)

First, the court

finds that Defendant has met its burden to provide a copy of an alleged agreement to arbitrate this controversy. Defendant presents a copy of a “Temporary Worker and Arbitration Agreement” bearing an electronic signature from Plaintiff dated November 3, 2023. (Reveles Decl. Ex. A.) Defendant also

presents the testimony of Dayda Reveles, Branch Manager for defendant First Rate Staffing Corporation, who declares that Plaintiff signed the document on a tablet with a stylus pen in her presence. (Reveles Decl. ¶ 3.)

Second, Plaintiff

argues that the agreement is void for fraud in the execution because Defendant used an English-only arbitration agreement to deceive Plaintiff—who only speaks Spanish—as to the nature of the agreement.

“Generally, a party may not avoid enforcement of an arbitration provision because the party has limited proficiency in the English language. If a party does not speak or understand English sufficiently to comprehend a contract in English, it is incumbent upon the party to have it read or explained to him or her.” (Caballero v. Premier Care Simi Valley LLC (2021) 69 Cal.App.5th 512, 518-519.) However, where the other party is deceived as to the nature of the document with the aid of an English-only arbitration provision, that agreement is void for fraud in the execution. (Ramos v. Westlake Services LLC (2015) 242 Cal.App.4th 674, 690; see also Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 415 [agreements are void for fraud in the execution where “the fraud goes to the inception or execution of the agreement, so that the promisor is deceived as to the nature of his act, and actually does not know what he is signing, or does not intend to enter into a contract at all.”].)

Plaintiff states

that she is a monolingual Spanish speaker and cannot read, write, or understand English. (Avila Decl. ¶ 3.) Plaintiff concedes that she met with Ms. Reveles to complete her onboarding paperwork, and the parties agree that this meeting was conducted solely in Spanish. (Avila Decl. ¶ 4; Reveles Decl. ¶ 3.) Plaintiff categorically denies that Reveles “explained each of the onboarding documents, including the [Arbitration] Agreement, in Spanish.” (Avila Decl. ¶ 8; Reveles Decl. ¶ 3.) Plaintiff states that Reveles instead scrolled through the documents herself and told Plaintiff that she did not need to read those documents. (Avila Decl. ¶ 6.) Plaintiff further states that she does not recognize the Arbitration Agreement, did not read it, and could not have read it because it is in English, which she cannot read at all. (Avila Decl. ¶ 7.)

The court finds

that Plaintiff has met her burden to produce sufficient evidence to demonstrate a factual dispute as to the existence of a valid arbitration agreement.

Finally, the

court finds that Defendant has not met its burden to demonstrate by a preponderance of the evidence that Plaintiff agreed to arbitration. Defendant presents no evidence beyond the Reveles declaration itself to contradict Plaintiff's narrative of events. Moreover, the only portion of the Arbitration Agreement that is in Spanish purports to translate the warning at the top of the document stating that the document is an Arbitration Agreement which affects the signer's rights. However, this warning omits the term "arbitration agreement" in the Spanish translation, but not the English version.

(Belinsky Decl. ¶¶ 2-3.) This omission further supports Plaintiff's contention that Defendant concealed the Agreement's true nature from Plaintiff. Based on this record, the court finds that the weight of the evidence supports Plaintiff's contention that the agreement is void for fraud in the execution. For that reason, the court denies the motion to compel arbitration.

Joinders to Motion to Compel
Arbitration

Defendants

First Rate Staffing Corporation, Janet Mendoza, and Genaveva Rendon join Pitney Bowes, Inc.'s motion to compel arbitration. For the reasons stated above, the court denies the joinders to the motion.

ORDER

The court denies
defendant Pitney Bowes, Inc.'s motion to compel arbitration.

The court denies
defendants First Rate Staffing Corporation, Janet Mendoza, and Genaveva Rendon's joinders to the motion to compel arbitration.

The court orders plaintiff
Graciela Avila to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 28, 2026

Robert

B. Broadbelt III

Judge of the Superior Court